

MUNICIPAL CORPORATION, SAHIBZADA AJIT SINGH
NAGAR (MOHALI)

No.:- 3753

Dated:- 20-12-2018

Corrigendum/Addendum to E-Auction notice no. 3554 dated: 27-11-2018

This Municipal Corporation invited Technical and Financial bids vide E-Auction Notice No. 3554 dated: 27-11-18. As certain amendments have been made in this E-Auction Notice, therefore, fresh/modified E-Auction document is notified as given below:-

Municipal Corporation, Sahibzada Ajit Singh Nagar invites Technical and Financial bids through E-Auction platform from Outdoor Media Agencies for allotment of sites for Advertisement through Unipoles, Gantries, Bill-Boards, Display Panels on Toilet Blocks and LED for a period of 7 Years. All the bidders have to get themselves registered with www.tenderwizard.com/DLGP and get user ID. The tentative details of Outdoor Media devices and maximum number of sites, permitted to use is as given below.

Col. 1	Col.2	Col.3	Col.4	Col.5	Col.6
Outdoor Media Device (OMD)	Number of sites	Display Size of each device	% of weightage	Reserve OMD charges per Annum (in Rs)	Earnest Money (3% of the Annual OMD charges) (in Rs)
Unipole	102	18 feet x 8 feet	72.20%	Rs.95880000/-	Rs.2876400/-
Gantries	14	As per list attached	17%		
Bill-Boards	04	25 feet x 20 feet	6.95%		
BOT Toilet Blocks	05	As per list attached	1.60%		
Toilet Blocks	26	As per list attached	1.60%		
LED	01	20 feet x 10 feet	0.65%		

The tentative list of the above OMD can be seen in the office of Joint Commissioner of this Corporation during working hours on any working day.

E-Auction Schedule:-

Availability of option for Technical bidding online	Last date and time of on-line submission of Technical Bids	Date and time of Final Bids through E-Auction
Up to 04-01-2019 till 5.00 P.M	04-01-2019 till 5.00 P.M	From 07-01-2019 to 10-01-2019 till 5P.M

For details log onto : www.tenderwizard.com/DLGP

Note: If any of the above date is declared holiday, the activity scheduled for that day will take place on the next working day.

Commissioner,
Municipal Corporation,
Sahibzada Ajit Singh Nagar.

1. Scope of Work:

- 1.1) Allotment of Outdoor Media **sites/Devices (OMD)** in lieu of OMD Display Charges for 7 years through progressive bidding. However, the period can be extended by 2 years subject to fulfillment of terms and conditions and no default by the successful bidder during the initial period of 7 years.
- 1.2) It may be ensured that in case, OMDs are to be lit, the glare of illumination should fall only on the display area and should not cause distraction to drivers of vehicles.
- 1.3) Poles of gantries are to be covered with high grade green color reflective tape or should be painted with a reflective color paint up to height of 5ft. from the ground, so that pole of gantry is visible to coming traffic from a safe distance. Gantry structures should not hinder/obstruct vehicular/pedestrian movement.
- 1.4) Successful bidder will not be allowed to use existing structure of all Unipoles, Bill Boards and 3 Gantries. The existing structure of all Unipoles Bill Boards and 3 Gantries will have to be removed and moved to Municipal Corporation store by the successful bidder. The successful bidder will have to construct the structure of all Unipoles, Bill-Boards, LED and 2 Gantries (OMD UID No. GT/13 & GT/14) at his own cost on BOT basis as per the specifications mentioned in Point No. 10 of General terms and conditions of this E-Auction Notice. **On expiry of the contract period or on termination of contract due to any reason, these devices /structures will become the property of this Municipal corporation and the successful Bidder will not have any claim over them.**

2. Technical Bid Eligibility Criteria

- 2.1) Bidder (individuals , company, firm, entity) should have at least 3 crore turnover in each 3 of the at least last 4 financial years (2014-15, 2015-16, 2016-17, 2017-18) or having Net-Worth of more than 1.5 crore and having 3 year experience in the field of Outdoor Advertising. The bidder will produce Certificate by Statuary Auditor for the same.
- 2.2) The bidder can be Individual Proprietor, Registered partnership firm, LLP (Limited Liability Partnership), Registered Co-operative Society, Public or Private limited company incorporated under Indian Companies Act, 1956/2013. The bidder should be legally competent to enter into contract as per prevailing laws.
- 2.3) The bidders, who were or have been allotted advertisement work at any time by this Corporation, will have to furnish a "No Due Certificate" from this Corporation. Dues means any due of license fee/OMD charges, GST, Taxes, Penalty and Interest etc. The bidder would apply for the NOC to Municipal Corporation, Sahibzada Ajit Singh Nagar in writing in this regard.
- 2.4) The bidders will have to submit an Affidavit duly attested by 1st class Magistrate on Non -judicial stamp paper of Rs.100 /that he /their company/ agency/ firm etc. or any Director/Partner/member/Authorised Signatory of their company/ agency/ firm etc. does not stand blacklisted/debarred/defaulters as on the date of submission of bid by Central Government, State Government,any Municipal Corporation /Council anywhere in India. In case the bidder submits any false information, this Corporation reserves the right to forfeit the earnest money deposited, initiate legal action and blacklist such bidder. If the Director/Partner/Proprietor/Authorised Signatory etc. of any company/ agency/ firm/Individual etc. has remained the Director/Partner/Proprietor etc. of a company/ agency/ firm/Individual etc. which stands blacklisted/debarred/defaulters as on the date of submission of auction/bid by any Government/Semi-Govt., Department/Authority/Agency

anywhere in India, such agencies shall not be allowed to participate in E-auction/E-bidding process for this bidding in the Municipal Corporation, Sahibzada Ajit Singh Nagar.

- 2.5) Bidders will have to deposit **earnest money** after the technical bid is approved on the E-Auction website as mentioned in the NIT before the start of bidding. The earnest money is to be paid on-line in the account mentioned in the E-Auction site in favour of Municipal Corporation, Sahibzada Ajit Singh Nagar.
- 2.6) The bidders will have to pay processing fee through E payment (Online).
- 2.7) Bidder shall upload self attested scanned copies of all the papers & all the certificates as required for eligibility criteria at the time of submission of Technical bids:
 - i. Turnover Certificate/Latest Audited Balance Sheet of Financial Year 2014-15, 2015-16, 2016-17 and 2017-18.
 - ii. Affidavit as mentioned in 2.4 of Technical Bid eligibility criteria.
 - iii. NOC from Municipal Corporation, Sahibzada Ajit Singh Nagar.
 - iv. Solvency Certificate as per 2.8 of Technical Bid eligibility criteria.
- 2.8) Bidder shall furnish latest solvency certificate of Rs.3.0 crore issued by a Bank at the time of submission of Technical bid.

3. Financial Bid

- 3.1) Allotment will be made on the basis of highest total OMD charges quoted by the bidders. The bidders quoting highest amount of OMD charges will be declared successful subject to fulfilling all other conditions of NIT. All devices will be allotted in a single lot and no splitting is allowed.
- 3.2) The financial evaluation of the bid will be considered on the total quoted price. Such price should be exclusive of any taxes.

General Terms and Conditions:

- 1) The bidders are advised to visit all the locations specified for allotment before participating in E-auction.
- 2) No person shall be allowed to submit his/ her bid or participate in the bidding unless the authorized signatory of the E-Bidder furnishes resolution on behalf of the company, authorizing him/her to sign all the documents of E-Auction on Rs.100/- stamp paper at the time of Technical bid.
- 3) The companies are allowed to participate doing a consortium or JV (Joint Venture) provided that the parent company qualifies in all the terms and conditions of the contract and all the companies of JV/consortium should submit No Due Certificate from the respective ULB of Punjab where they had ever had any contract.
- 4) No request for adjustment of previous payment / Security Deposits against the earnest money will be entertained under any circumstances.
- 5) Each prospective Bidder shall have to pay registration charges at the time of creation of his/her user ID processing fees for submission of Technical bids as mentioned on website through online payment modes.

- 6) The E-auction would start over and above the minimum reserve price/OMD charges per annum.
- 7) The bidding is non transferable.
- 8) The Outdoor Media Devices (OMD) charges at which the rights will be allotted to highest bidder will be increased by 2% every year over the previous year for the first 2 years and thereafter 5% increase every year over the previous year for the remaining years. If extended further for 2 years, the OMD charges will increased further by 5% for the 8th year and again 5% for the 9th year.
- 9) Where word "one sided" is mentioned against the site/ device that means only single / one side of advertisement display is allowed for advertisement.
- 10) Successful bidder will not be allowed to use existing structure of all Unipoles, Bill Boards and 3 Gantries which are not being reallocated. The existing structure of all Unipoles, Bill Boards and 3 Gantries will have to be removed and moved to Municipal Corporation store by the successful bidder. The successful bidder will have to construct the structure of all Unipoles, Bill-Boards, 2 Gantries (OMD UID No. GT/13 & GT/14) and LED at his own cost on BOT basis as per the specifications mentioned below:-

The specifications for OMD structures:-

a) Unipole:

1. Thickness of coated stainless steel sheet for pole – 6 mm.
2. Diameter of pole -10 inches.
3. Height of Pole – 10 feet.
4. Display Panel should be made of 1.50 x 1.50 inches diameter/ size mild steel (M.S.) pipe photo frame should be made of stainless steel / coated stainless steel. Minimum weight 16 Kg.
5. Back side of display panel should be made of G.P.Sheet.
 1. Foundation – Depth – 4feet, width – 2 x 2 feet, foundation plate size 2x2 feet (made of 12 mm thickness).Top plate of unipole be of 10 mm thickness.

b) Billboard – Size 25 feet x 20 feet (specification as mentioned for Unipole)

Above specification are just basic guidelines. This specification will have to be certified by the approved structural engineer.

c) Specification of Gantries:

- 1.Foundation : Depth- 7ft, Width – 2.5x2.5ft , foundation plate – 2.5x2.5 ft of 12mm
2. Pipe Thickness -8mm
3. Diameter of pipe -12 inches (Round in shape)
- 4.Display panel frame should be made of 2inches diameter pipe.

There are some existing Unipoles / Bill Boards / Gantries which have not been included in the sites to be auctioned. Successful bidder will not have any claim over the structures of such devices. **On expiry of the contract period or on termination of contract due to any reason, these devices**

/structures will become the property of this Municipal corporation and the successful Bidder will not have any claim over them.

- 11) The design of frame of Unipole and Bill Board will be as of existing Unipoles and Bill-Boards
- 12) Location of all OMDs have to be in conformity with the parameters set in the "The Punjab Municipal Outdoor Advertisement Policy 2018 and the Model Outdoor Advertisement Bylaws 2018". Therefore, the bidder should visit all the sites and check the feasibility of display of OMDs or erection of OMDs before participating in the tender. The request to change the site will be entertained only if the erection of OMDs at the pre-determined site is not feasible due to circumstances beyond the control of successful bidder and Municipal Corporation. Change of site will be allowed with the approval of Commissioner, Municipal Corporation.
- 13) Successful bidder will paste a sticker having minimum size of 6" length and 3" width on the lower right hand side of the Outdoor Media Devices (OMD) pole having the name and contact number of the licensed advertising agency, size of hoarding (space allowed for advertisement) and validity of permission granted. The Corporation shall provide a Unique Identity Number for each Outdoor Media Devices (OMD). The color of base of sticker should be white and inscription should be in green color. The violation of this condition will attract penalty @ Rs.500/- per OMD per day.
- 14) The successful bidder will be required to indemnify Municipal Corporation Sahibzada Ajit Singh Nagar for the designated Outdoor Media Devices (OMD) and activities located within the jurisdiction of this Corporation. The agency shall indemnify the Corporation against all actions, proceedings, claims, demands, costs, losses, damages and expenses which may be brought against or made upon the Corporation which arises as a result of the installation of an OMD. The agency shall keep the Corporation indemnified against all actions, proceedings, claims, demands, costs, losses, damages and expenses which may be brought against or made upon the Corporation which might arise from the existence of such OMD. The agency shall always be responsible for any injury or damage to or suffered by any person or property arising out of or relating to the display of Outdoor Media Devices (OMD) and the consequential claim shall be borne by the agency who will also indemnify and safeguard the Corporation in respect of any such claim or claims.
- 15) The successful bidder shall provide evidence of Public liability Insurance for the following types of OMD devices and activities located within the boundary of Municipal Corporation S.A.S Nagar:-
 - Category-1:- Large-format OMD mainly fixed on bill boards/Unipoles/Bypoies/variable message OMD such as LED, LCD screens etc. and Bridge/Fly-over panels/Gantries etc.
 - Category-2:- OMD mounted on Public amenities like Public toilets. Garbage collection points, flag signs etc.

During the term of the Agreement and at it's sole cost and expense, the agency shall obtain and keep (in full force and effect in the joint names of **agency** and Municipal Corporation S.A.S Nagar) a public liability insurance policy of value Rs.2 Crore for their respective rights, interests and liabilities to third parties in respect of accidental death or accidental bodily injury to persons or accidental damages to property. The public liability policy of insurance shall be for an amount of accepted price and shall be effected with and insurer approved by Government. The policy of insurance shall include a clause in which the insurer agrees to waive all the rights of subrogation or action that it may have or acquire against all or any of the persons comprising the insured. The

successful bidder will produce evidence to the satisfaction of Municipal Corporation Sahibzada Ajit Singh Nagar of insurance effected and maintained by the agency for the above said purpose within 7 days of receiving a written request to do so from Municipal Corporation Sahibzada Ajit Singh Nagar.

- 16) The Successful bidder if requires installing lesser number of OMDs, he/she shall be allowed to do so but there would be no reduction in the monthly OMD charges/fees.
- 17) During the period of agreement, the Municipal Corporation Sahibzada Ajit Singh Nagar may identify/create additional sites for OMD upto a maximum of 25% extra sites & will get the site approved from ARC. If ARC approves the site, the agency will be allowed to create the site/sites. For such sites, the agency will have to pay the charges on prorata basis as per the weightage shown in **E-Auction Notice Table**. Allotment of such a site will be at the discretion of Commissioner of Municipal Corporation Sahibzada Ajit Singh Nagar and agency will not claim it as a right.
- 18) Agency will have to submit the structure safety certificate of existing OMDs that structure of the OMD is safe and is strong enough to remain in good condition for atleast 10 years. If the Structural Engineer does not declare any structure safe, it shall have to be upgraded by the bidder at his own cost to make it safe. Display of advertisement will not be allowed till such certificate is submitted.
- 19) The successful bidder will submit Bank Guarantee of the amount equal to 3 months of the bid amount (6 months in case of Firms/Companies, its promoters, directors, partners who does not have experience in the field of Outdoor Advertising) in favour of Municipal Corporation S.A.S Nagar as security which shall remain valid till the enforcement of agreement alongwith refundable security equal to 3 months of the bid amount, which shall be adjusted alongwith EMD at the end of the tenure to be submitted within 15 days of receiving the allotment letter. The successful bidder shall pay the OMD charges monthly in advance before 10th of every month for which the successful bidder will have to submit 84 post dated cheques each bearing the date before 10th of concerned month and of an amount equal to the monthly OMD charges of the concerned month. **These cheques will have to be submitted within 15 days of receiving the allotment letter.**
- 20) The Earnest Money of the successful bidder will be retained and adjusted at the end of the tenure. If the first successful bidder does not submit the Bank Guarantee and security (as per above Point 19 of General Terms and Conditions of this document) and does not deposit one month's OMD charges in advance within the Moratorium period (as described in Point 22 of General Terms and Conditions of this document) of 1 month, the Earnest Money will be forfeited and company will be blacklisted. The Earnest Money of all other unsuccessful bidders will be returned online.
- 21) Any delay in payment of OMD Display Charges shall entail payment of interest @ 18% per annum on the amount outstanding for the days of default. Delay beyond 30 days from the due date will be treated as a default. In such case Municipal Corporation Sahibzada Ajit Singh Nagar can forfeit the Bank Guarantee and terminate the agreement without any prior notice.
- 22) The Agreement shall be executed within 15 days of issue of LOI. One month from the Agreement shall be the Moratorium period. In the 2nd month the vendor shall pay an amount equal to 50% of one month OMD charges. From the 3rd month onwards 100% OMD charges shall be payable. The

moratorium period is to submit Bank guarantee, security, OMD display charges, post dated cheques of OMD charges and GST etc. and installation of OMDs.

- 23) Agency will take over the existing structures of 12 Gantries and Toilet Blocks which the successful bidder will be allowed to use and check that these are in conformity with the provisions of "The Punjab Municipal Outdoor Advertisement Policy 2018 and the Model Outdoor Advertisement Bylaws 2018". If any structure is not in conformity to this Policy and Byelaws, the successful bidder shall have to make them so by shifting / tilting the structure at his own cost and no grace period or remission in OMD display charges will be given for doing this. On expiry of contract period the agency will hand over all the structure to this Municipal Corporation in proper condition.
- 24) The bidder will have to quote the amount in figures and words clearly.
- 25) The successful bidder will have to sign an agreement with this Corporation regarding the work allotted on Rs 300/- non - judicial stamp paper within seven days from the date of receipt of letter of intent.
- 26) The allotment will be made without prejudice to the right of others.
- 27) The successful bidder shall remove the advertisement displayed on the Outdoor Media Devices (OMD) immediately on the expiry of allotment period or on termination of contract due to any reason and all Outdoor Media Devices (OMD) installed by the agency will be the Property of Municipal Corporation, S.A.S Nagar. Bank Guarantee will be refunded / released only after clearance of dues, submission of NOC from the electricity department and inspecting all OMDs that should be in good shape.
- 28) The successful bidder shall not exhibit any display, which affect public morality, or hurt the sentiments of any caste, creed or religion, are obscene and also the displays which are banned by the Central and state Government. If the agency displaced such a commercial or non-commercial media, a penalty of Rs. 50,000/- will be imposed and the same will be removed without giving any notice.
- 29) During the period of contract, if necessitated for carrying out repairs, maintenance, laying of power lines, widening of road/ pavements or for any other purpose or reason, the OMD has to be removed in public interest or for any other reason/ purpose, alternate site shall not be allotted to the contractor in lieu of the site. In such case the agency will be given remission in the OMD display charges on prorata basis for the relevant period.
- 30) Municipal Corporation will not be liable / responsible for any damage or accident caused to the advertisement and to its material due to any act of nature, any unforeseen act, on account of any failure on the part of advertisement mechanism or any reason whatsoever.
- 31) If the successful bidder fails to do or perform any contractual obligations as per terms and conditions of the contract, Municipal Corporation may do or cause the same to be done and recover the cost of doing from the agency without prejudice to any other right on account of such default.
- 32) The successful bidder shall take proper care of OMDs to avoid any untoward incident and also to ensure public safety and security. The maintenance shall be at the risk and cost of the successful

bidder during the period of contract. The Corporation is not liable to pay any compensation for any damage to property or any loss of life.

- 33) If any doubt arises as to the interpretation of any of the general or special condition mentioned in the tender notification, Schedules or Agreement, the decision of the Commissioner, Municipal Corporation, Sahibzada Ajit Singh Nagar shall be final and binding on the tenderers / bidders.
- 34) The successful bidder and his/ her agent shall observe, perform and comply with provisions of the Punjab Municipal Corporation Act- 1976, The Punjab Municipal Outdoor Advertisement Policy 2018 and the Model Outdoor Advertisement Bylaws 2018 and regulations in force from time to time.
- 35) In any dispute and differences arising out of or in any way touching or concerning this allotment, Arbitrator shall be appointed as per direction by the Government.
- 36) The authorized officer of Municipal Corporation, Sahibzada Ajit Singh Nagar will inspect the sites of Outdoor Media Devices (OMD) as and when needed.
- 37) Commissioner of this Municipal Corporation can inspect any OMD during the contract period and have the right to remove that structures (which are not in conformity with the prevailing rules and conditions of agreement) immediately without informing the licensee.
- 38) The Commissioner, Municipal Corporation, Sahibzada Ajit Singh Nagar reserves the right to accept, reject or cancel any one or all the tenders without assigning any reason.
- 39) The Successful bidder will pay Income Tax/Good Service Tax/Provident Fund/E.S.I. or any other all taxes as applicable from time to time directly to the Concerned authority.
- 40) Successful bidder will have to pay the GST or any applicable taxes on the work allotted as fixed by Central Government. This GST will be in addition to OMD display charges quoted by the bidder. If Municipal Corporation had to pay any GST on OMD charges received, the same will have to be paid by the agency to this Municipal Corporation for onward payment to Central Government. The amount of GST will have to be paid to this corporation by 1st of concerned month. If there is any delay in payment of this amount interest @ 18% per annum will be charged. If this amount is not paid by the end of month, the same will be encashed from the Bank Guarantee submitted by the bidder. For this (payment of GST), the licensee will have to submit post dated cheques for monthly payment of GST. If government increases the rate of GST at any time, the agency will have to pay the enhanced amount. GST on sale of space and display of advertisement has to be paid by agency only, meaning any liability of GST on the OMD display charges has to be borne by successful bidder.
- 41) Successful bidder has to establish an office/ Sub office in the limits of Municipal Corporation, Sahibzada Ajit Singh Nagar.
- 42) All the electricity/ water connections etc. will have to be obtained by the agency in its name at its own cost from the concerned department. Municipal Corporation will issue N.O.C. only for getting connection. At the completion of the contract, the agency will have to produce No Due Certificate from the concerned department.

- 43) The Successful bidder will have to maintain the area around the advertisement devices properly (as it was before installation) after erecting/installing the advertising devices / infrastructure at his own cost.
- 44) Poles of all gantries are to be covered with high grade green color reflective tape up to height of 5ft. from the ground , so that pole of gantry is visible to coming traffic from a safe distance.
- 45) Agency will have to keep OMDs free from defacement. Any defacement of devices will have to be removed by the agency within 48 hours.
- 46) When not in use (no media displayed) the OMD must be kept covered with white coloured Flex. In case of violation of this condition, a penalty @ Rs. 500/- per day per OMD will be charged.
- 47) All bidders should provide their telephone, E-Mail address, address of residence show that, the successful bidder may be informed through telephone, E-Mail address also. Communication with successful bidder will be channelized through any of these modes.
- 48) Any corrigendum or addendum to the NIT or any change in terms and conditions will be uploaded on the following website only: **www.tenderwizard.com/DLGP** & the Municipal Corporation, Sahibzada Ajit Singh Nagar website (www.mcmohali.org). No separate corrigendum will be issued in Newspaper. Therefore all interested bidders should remain in touch with these Websites.
- 49) The Commissioner, Municipal Corporation, Sahibzada Ajit Singh Nagar reserves the right to include any new term/ condition or exclude any of the above mentioned condition.
- 50) All disputes shall be subject to jurisdiction of Sahibzada Ajit Singh Nagar(Mohali) Civil Courts.

Commissioner.
Municipal Corporation,
SahibzadaAjit Singh Nagar.